

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.

13. S-CV-0055904 AGOSTINI, CAROLYN v. AGOSTINI, SEBASTIEN

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion for Summary Adjudication of Plaintiff's Second Cause of Action for Partition by Sale

Preliminary Matters

Plaintiff's requests for judicial notice are granted.

Ruling on Motion

Plaintiff moves for summary adjudication as to the second cause of action for partition by sale in her complaint. A motion for summary adjudication may be granted if "all the papers submitted show that there is no triable issue as to any material fact and the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc. § 437c, subd. (c).) Plaintiff, as the moving party, meets her burden if she proves each element of the cause of action. (*Id.* subd. (p)(1).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact exists as to the cause of action. (*Ibid.*) In reviewing a motion for summary adjudication, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

Partition is a statutorily prescribed proceeding in equity that confers broad discretion on the trial court to fashion relief without being bound by strict rules of procedure. (*Richmond v. Dofflemyer* (1980) 105 Cal.App.3d 745, 766; *Wallace v. Daly* (1990) 220 Cal.App.3d 1028, 1035.) In a partition action, any co-owner of real or personal property may seek to terminate and sever common interests in property "to avoid the inconvenience and dissension arising from sharing joint possession of land.' . . . [Citation.]" (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493, citation omitted.) A co-tenant who holds an interest in real property has an absolute right to bring a partition action at any time, absent waiver or estoppel. (Code Civ. Proc., §§ 872.210, 8972.710, subd. (b).) "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc., § 872.720, subd. (a).)

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By the plain statutory language, the court must first determine the interests of the parties in the subject property before it can determine the manner of partition.

Here, plaintiff meets her burden to establish the parties have concurrent 50% interests in the property and that she did not waive her right to partition. (UMF Issue 1, Nos. 1–3, Issue 2, Nos. 1–4.) The burden therefore shifts to defendants to raise a triable issue of material fact. However, defendants do not meet their burden to raise a triable issue of material fact.

Accordingly, the motion for summary adjudication is granted. The parties have an undivided interest in the property as tenants in common with plaintiff having a 50% interest and defendants having a 50% interest.

As to the manner of partition, it appears to be uncontested that the real property is a single-family dwelling. (UMF Issue 3, Nos. 1–2.) Accordingly, the court finds partition by sale would be more equitable. (Code Civ. Proc., § 872.820.)

The court is required to appoint a referee to sell the property. (Code Civ. Proc., § 873.010, subd. (a).)

The court on its own motion schedules a hearing to appoint a referee on **May 28, 2026 at 8:30 a.m. in Department 3**. The parties are directed to meet and confer in good faith, which includes acting within the spirit and meaning of the California Attorney Guidelines of Civility and Professionalism, towards proposing a mutually agreeable referee. On or before **May 21, 2026**, the parties shall file a joint declaration updating the court on the meet and confer efforts and providing the name of a mutually agreeable referee or, if they are unable to agree, each party may submit a list of up to three proposed referees with information pertaining to their training and experience.

14. S-CV-0056028 JANSEN, DANIEL v. J.B. HUNT TRANSPORT SERVICES

The demurrer is continued to **Thursday, May 7, 2026, at 8:30 a.m. in Department 3**.

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